



INDEPENDENT EB-5 ANALYSIS

EB-5 Offering Analysis

Excerpted Sample Report

An illustration of how EB5 Diligence organizes offering terms, tests the documents against one another, identifies what has not been evidenced, and develops the questions an investor should put to the issuer.

ILLUSTRATIVE PROJECT

Riverside Advanced Manufacturing Expansion

This is not an actual offering. All names, terms, figures, citations, findings, and questions shown in this document are illustrative.

What this excerpt contains

- Executive summary — how the offering is described in one page, with sources
- Offering snapshot — material terms assembled in one table
- Capital stack and repayment — priority of capital and what repayment depends on
- Job creation and immigration posture — USCIS status separated from projections
- Critical gaps and issuer questions — the follow-up list the analysis produces

ABOUT THIS SAMPLE

What an Offering Analysis does

An Offering Analysis converts a large and fragmented EB-5 offering package into a consistent, cited explanation of the investment. It is designed to help an investor understand the documents, compare offerings, and know what must still be investigated.

The three outputs that matter most

1. **Organized terms.** Material provisions are brought together in one place.
2. **Document testing.** Agreements are compared for conflicts, omissions, and unsupported claims.
3. **A due-diligence roadmap.** The report identifies the evidence an investor should request and the questions the issuer should answer.

Scope and limitations

The analysis is based exclusively on the offering materials made available for review. It explains and evaluates what those documents state. It does not independently verify sponsor representations, and it is not an audit, appraisal, market study, feasibility study, legal opinion, tax analysis, immigration analysis, or independent financial underwriting.

The report is informational. It is not investment advice, a recommendation, or a prediction of immigration approval, project performance, repayment, or return of capital. EB-5 investments involve risk, including the possible loss of the entire investment. Investors should consult qualified immigration counsel, securities counsel, tax advisors, and financial professionals.

Independence and disclosure

EB5 Diligence is engaged and paid by the investor. It receives no fee, commission, or other compensation from the issuer, sponsor, or regional center for preparing the analysis. Where EB5 Diligence or its principal has a business relationship with an offering under review — including as a registered representative of Nortlov Securities, LLC — that relationship is disclosed on the first page of the report.

How citations work

Every material statement in a completed report is tied to the document that supports it. Illustrative citations in this sample show the intended reading experience, such as: PPM p. 27; Loan Agreement Sec. 3.2; Business Plan p. 41.

SELECTED EXCERPT 1

Executive summary

The summary states what the documents describe, in plain language, and separates it from what the documents do not yet establish. It does not rate, rank, or recommend the offering.

Element	As described in the offering documents
Structure	The new commercial enterprise raises up to \$24.0 million from 30 investors and lends the proceeds to the project borrower under a five-year loan with two one-year extension options. Investors receive a 0.50% annual preferred return. PPM pp. 8, 11; Loan Agreement Secs. 2.1, 2.4; LP Agreement Sec. 5.3
Capital deployment	Total capitalization of \$60.0 million: \$12.0 million developer equity, a \$24.0 million senior construction loan, and \$24.0 million of EB-5 proceeds. The EB-5 loan is described as secured by a second-position mortgage and an equity pledge, subject to senior-lender rights. Business Plan p. 31; Loan Agreement Sec. 4.2
Project	Expansion of an existing advanced manufacturing facility; jobs modeled from construction expenditures and post-opening operations. Business Plan pp. 12–18
Immigration posture	Rural TEA per sponsor representation; I-956F approved, notice dated March 4, 2026. The economic model projects 402 jobs against the 300 required for 30 investors. TEA analysis p. 3; I-956F Notice; Economic Impact Report p. 22
Open items	Four matters are unresolved on the face of the documents: the executed senior credit agreement; evidence that developer equity has been funded; current construction reporting; and a \$2.7 million difference between the economic model and the budget.

What a summary should not do

A summary that compresses an offering into a score hides the reasoning. The purpose here is the opposite: to state each representation, attach it to its source, and show which ones an executed document supports.

Documents reviewed for this illustrative package

- Private Placement Memorandum
- Limited Partnership Agreement
- Subscription Agreement
- Loan Agreement and exhibits
- Business Plan and development budget
- Economic Impact Report
- TEA analysis
- I-956F approval notice

Referenced in the package but not provided: executed senior credit agreement; current construction draw report; appraisal or valuation supporting the refinance assumption. A completed report lists both what was reviewed and what was missing.

SELECTED EXCERPT 2

Offering snapshot

This condensed page illustrates how material terms are presented. A completed report includes substantially more fields, narrative, reconciliation, and citations.

Item	Illustrative term	Document source
EB-5 investment	\$800,000 per investor	PPM p. 8
Administrative fee	\$70,000	Subscription Agreement p. 4
Offering size	Up to 30 investors / \$24.0 million	PPM p. 11
Investment structure	NCE loan to project borrower	Loan Agreement Sec. 2.1
Loan term	5 years, plus two 1-year extensions	Loan Agreement Sec. 2.4
Investor return	0.50% annual preferred return	LP Agreement Sec. 5.3
Collateral	Second-position mortgage and equity pledge	Loan Agreement Sec. 4.2
TEA category	Rural — sponsor representation	TEA analysis p. 3
I-956F status	Approved — notice dated March 4, 2026	I-956F Notice
Job cushion	Projected 34% above minimum	Economic Impact Report p. 22

Selected observation

The PPM and Loan Agreement describe the same initial maturity and extension structure. The business plan, however, refers to an anticipated repayment in Year 4 without explaining whether that timing assumes refinancing, sale proceeds, operating cash flow, or another capital event. The operative loan maturity is therefore clear, but the projected source and timing of repayment require further support.

Sources: PPM pp. 8, 11, 27; Loan Agreement Secs. 2.1 and 2.4; Business Plan pp. 39–42; LP Agreement Sec. 5.3.

Why this matters

Investors often focus on the stated term. The more important question is whether the documents demonstrate a credible source of funds to repay the NCE at maturity — and what rights the NCE has if repayment does not occur.

SELECTED EXCERPT 3

Capital stack and repayment

The analysis separates the amount and priority of each source of capital, then examines what must happen for the EB-5 investment to be returned.

Source	Amount	% of total	Status stated
Developer equity	\$12.0M	20%	Contributed
Senior construction loan	\$24.0M	40%	Commitment described
EB-5 loan	\$24.0M	40%	Being raised
Total	\$60.0M	100%	

Source: Business Plan p. 31. Figures are illustrative and have not been independently verified.

Selected findings

Topic	Document-based finding	Assessment
Developer equity	The business plan states \$12.0M has been contributed, but no closing statement, bank evidence, or current project ledger was provided.	■ Not supported
Senior debt	A lender term sheet is referenced. The executed credit agreement and current conditions-to-funding schedule were not included.	■ Not provided
Collateral	The EB-5 loan is described as secured by a second-position mortgage and equity pledge, subject to senior-lender rights, in the executed loan agreement.	■ Documented
Repayment	The base case assumes refinancing after stabilization. No executed refinancing commitment or third-party valuation was provided.	■ Not supported

Assessment labels are applied in the same way to every offering reviewed, which is what allows two projects to be compared on evidence rather than presentation.

Documents needed to evaluate the repayment claim

Executed senior credit agreement; current sources-and-uses ledger; evidence of developer equity funded; current construction draw report; appraisal or valuation supporting the refinance assumption; intercreditor or subordination agreement; and any executed refinancing commitment.

SELECTED EXCERPT 4

Job creation and immigration posture

The report distinguishes USCIS status and document evidence from projections that remain dependent on future expenditures, construction, revenue, or operations.

Metric	Illustrative result	Analytical note
Investors contemplated	30	Requires 300 qualifying jobs
Jobs projected	402	Economic-model projection
Projected cushion	102 jobs / 34%	Before changes to scope or eligible inputs
Jobs tied to construction	318	Dependent on eligible expenditures
Jobs tied to operations	84	Dependent on operating assumptions

Source: Illustrative Economic Impact Report pp. 18–24; Business Plan pp. 33–38.

Selected consistency check

The economic report models \$51.4 million of qualifying construction expenditures, while the business plan's detailed development budget identifies \$48.7 million in potentially qualifying categories. The documents do not reconcile the \$2.7 million difference. Because projected job creation depends on the eligible input amount, the discrepancy should be resolved before relying on the stated cushion.

Sources: Economic Impact Report p. 19; Business Plan pp. 34–36.

What the I-956F approval does — and does not — establish

The approval notice establishes the project's USCIS posture as documented. It does not independently establish that every future investor will be approved, that projected expenditures or jobs will occur, or that investor capital will be repaid. Those are separate questions requiring separate evidence.

Evidence to request

Current expenditure ledger; independent fund-administrator report; invoices and draw records supporting eligible costs; current construction status report; reconciliation between the business plan budget and economic-model inputs; and confirmation of the number of investors admitted and jobs allocated to date.

SELECTED EXCERPT 5

Critical gaps and issuer questions

A completed report turns document gaps into a practical follow-up list. The questions below are illustrative examples arising from the fictional findings shown in this sample.

Gap	Why it matters	Priority
Executed senior credit agreement not provided	Prevents review of lien priority, covenants, defaults, foreclosure rights, and funding conditions.	Critical
No evidence supporting funded developer equity	The amount and timing of sponsor capital affect completion and alignment of interests.	High
No current construction report	The report cannot compare actual progress and spending with the stated schedule and budget.	High
Budget and economic inputs do not reconcile	The stated job cushion may change if eligible expenditures are lower than modeled.	Critical

Questions ready to send to the issuer

1. Please provide the executed senior credit agreement, all amendments, and the current schedule of conditions remaining before additional advances may be made.
2. Please reconcile the \$51.4 million construction input used in the economic report with the \$48.7 million of potentially qualifying costs identified in the business plan.
3. What specific source is expected to repay the EB-5 loan? If refinancing is assumed, please provide the valuation, lender correspondence, and underwriting assumptions supporting the projected proceeds.

Three of the questions developed from this fictional package are shown. A completed report develops the full set from the investor's actual offering documents, each tied to a specific provision, inconsistency, or missing item.

The value is not a longer checklist

The value lies in connecting each question to a specific representation, agreement provision, inconsistency, or missing item in the actual offering package.

COMPLETE CLIENT REPORT

What the full analysis includes

This excerpt shows selected pages. A completed report applies a 108-point analytical framework to the investor's actual offering documents across the sections below. The same framework and the same assessment labels are applied to every project, which is what makes two offerings comparable on evidence rather than presentation.

Area	Coverage in completed report	In this excerpt
Executive summary	Neutral explanation of structure, capital deployment, project, and immigration posture	Page 3
Offering highlights	Key terms and quick-reference findings with document citations	Page 4
EB-5 fund / NCE	Governance, deployment, economic terms, protections, fees, refunds, and enforcement	Partial
Project / JCE	Scope, budget, capital stack, timeline, jobs, projections, and repayment dependencies	Page 5
Management	Document-stated principals, roles, affiliations, conflicts, and track record	—
Regional center and USCIS	Sponsorship, geography, TEA support, filing status, and available notices	Page 6
Documents reviewed	Version-controlled list of materials reviewed and materials referenced but missing	Page 3
Findings	Project-specific strengths, risks, and considerations tied to source documents	Pages 5–6
Critical gaps	Missing support, incomplete documents, inconsistencies, and questions for the issuer	Page 7

1

Send the documents. PPM, operating and loan agreements, business plan, economic report, and any USCIS notices.

2

Analysis. The framework is applied to the package and every statement is tied to its source.

3

Report delivered. Within 48 hours, followed by a call to walk through the findings and the questions for the issuer.

Request an Offering Analysis

\$500 per report. Delivered within 48 hours of receipt of the necessary offering documents.

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